

## County Commissioners Meeting - October 7th, 2025

| Meeting Metadata | Details                                                                                               |
|------------------|-------------------------------------------------------------------------------------------------------|
| Video Recording  | <a href="https://www.youtube.com/watch?v=Gh2Ju0_OfPM">https://www.youtube.com/watch?v=Gh2Ju0_OfPM</a> |
| Publication Date | 2025-10-08T03:36:27Z                                                                                  |
| Target Category  | delaware_county                                                                                       |

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## Delaware County Commissioners Meeting Summary

**Meeting Date:** October 7, 2025

**Presiding Officer:** President Henry

**Board Attendance:** Commissioner Brand, Commissioner Reagan, Commissioner Henry

### 2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The regular meeting of the Delaware County Commissioners was called to order at 9:00 a.m. by President Henry.
- **Attendance:** Commissioners Brand, Reagan, and Henry were all present.

### 3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance led by President Henry.
- **Approval of Minutes:** [00:33:58](#) The minutes of the September 15, 2025 meeting were approved with submitted corrections. (Motion carried by voice/roll call vote).

## 4. Substantive Business & Board Action

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- **00:01:21 Employee of the Month Recognitions:**
  - *Justice Center:* Brianna "Brie" Massie (nominated by Jeff Hansard, 10-year county employee, recognized for juvenile probation work and uncovering human trafficking cases).
  - *County Building:* Lee Royal (Human Resources, nominated by Jenna Kalin and Commissioner Brand).
  - *Action & Vote Disposition:* Approved by Voice Vote / Passed Unanimously.
- **00:05:02 Fair Board Appointment:**
  - *Sponsor / Presenter:* Commissioner Reagan.
  - *Deliberation Summary:* Appointment of Cindy Jeff (farmer out of Eaton, active with Farm Fest) to the open fair board slot.
  - *Action & Vote Disposition:* Passed 3-0.
- **00:05:48 Tabled Business - Universal Roofing Contract (Fairgrounds Log Cabin Cedar Roof):**
  - *Sponsor / Presenter:* Commissioner Reagan / Dan White (Fairgrounds President).
  - *Deliberation Summary:* Removed from table. A lower local quote from DCL Company for \$9,510 was reviewed to replace a previous contractor.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:07:19 Tabled Business - 613 North Broadway (Albany Burned House):**
  - *Sponsor / Presenter:* Commissioner Brand / Attorney John Brooke.
  - *Deliberation Summary:* Removed from table. Discussed deeding the property over to the town of Albany so they can tear down a long-standing burned house prior to the delayed county deed sale next year. County attorney confirmed legal process via court approval of the deed followed by a commissioner resolution.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:09:26 Tabled Business - Muncie Land Bank Property Requests:**
  - *Sponsor / Presenter:* Nate Howard (Muncie Land Bank).
  - *Deliberation Summary:* Removed from table. Five specific properties from the deed sale list (818 S. Blaine, 1317 E. First, 1419 E. First, 921 E. First, and 501 S. Proud) will be purchased by the Land Bank for the minimum bid of \$895 each.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:12:53 Tabled Business - Marathon Health Contract:**
  - *Sponsor / Presenter:* Ally Vau (Marathon Health).
  - *Deliberation Summary:* Removed from table. Proposal for primary care, mental health, health coaching, and occupational health services for county employees and families at the Muncie clinic (Lindberg Plaza). Current IU Health BMH services run through March 2, 2026.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:14:52 Tabled Business - Agreement for Tax Sale Legal Services:**

- *Sponsor / Presenter:* County Treasurer Mr. Polk / Attorney John Brooke.
- *Deliberation Summary:* Removed from table. Treasurer presented an agreement with Buchanan and Bergenschmidt for tax sale legal services. County legal counsel reviewed the contract and determined it was not compliant with Indiana law (IC 36-2-2.8) and stripped commissioner control.
- *Action & Vote Disposition:* Denied by Voice Vote (planned follow-up meeting scheduled for October 20 to discuss processes).
- **00:22:31 Tabled Business - Innkeeper's Tax Practice:**
  - *Sponsor / Presenter:* Kathy (Auditor's office).
  - *Deliberation Summary:* Removed from table. Following research on other counties, it was confirmed that innkeeper's tax is not charged for people camping at the fairgrounds.
  - *Action & Vote Disposition:* Approved by Voice Vote to codify practice of not charging innkeeper's tax for fairground campers.
- **00:30:02 Tabled Business - Solar Moratorium:**
  - *Sponsor / Presenter:* Board of Commissioners / Attorney John Brooke.
  - *Deliberation Summary:* Lengthy discussion on whether to remove the solar moratorium from the table. Ultimately, it was noted that the original moratorium (Resolution 2025-05) remains in effect until the updated solar zoning ordinance amendments are officially adopted or repealed. A motion to retable passed by voice vote.
- **00:31:59 Resolution 2025-14: Multi-Hazard Mitigation Plan:**
  - *Sponsor / Presenter:* Cory Kiss (Emergency Management Deputy Director).
  - *Deliberation Summary:* Five-year update required for strategic hazard and infrastructure mitigation planning.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:47:05 Delaware County Mental Health Facility Turnover:**
  - *Sponsor / Presenter:* Bill Galvin (BW Construction).
  - *Deliberation Summary:* Project is completed, and a certificate of occupancy was issued (effective September 10). Turnover documents, keys, as-builts, and deeds were transferred to the county. Utilities will be transitioned.
  - *Action & Vote Disposition:* Approved by Voice Vote to accept facility ownership and responsibility.
- **00:48:28 Ordinance 2025-21: Creation of Redevelopment Commission Fund (READY Grant):**
  - *Sponsor / Presenter:* Amber Green (Redevelopment Commission President).
  - *Deliberation Summary:* Creation of a fund to receive READY grant reimbursement funds (\$84,638.98) tied to an original ARP project in Daleville, ensuring the commission maintains access.
  - *Action & Vote Disposition:* Rules suspended and Ordinance 2025-21 Adopted by Voice Vote.

- **00:48:28 Ordinance 2025-20 / Zoning Ordinance Update (Solar Energy):**
  - *Sponsor / Presenter:* Planning Commission / Attorney John Brooke.
  - *Deliberation Summary:* Discussion on plan commission recommendations regarding solar zoning amendments, property value guarantees, and setbacks (retaining 500 ft with an 80% waiver option via written landowner consent down to 100 ft). A motion to accept the plan commission's recommendations for the entire ordinance passed by roll call vote.
- **00:52:16 Opioid Litigation Settlements (Sackler / Purdue & Sandoz):**
  - *Sponsor / Presenter:* Commissioners.
  - *Deliberation Summary:* Formal approval required to participate in national bankruptcy settlements.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:53:28 Muncie Mission Clinic Agreement:**
  - *Sponsor / Presenter:* Commissioners (on behalf of Jamie Bane).
  - *Deliberation Summary:* Continuation partnership funding (\$25,000 total: \$21,840 for a nurse practitioner for 12 hours/week, and \$3,160 for testing, supplies, and prescriptions).
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:54:54 Recovery Cafe Agreement:**
  - *Sponsor / Presenter:* Commissioners.
  - *Deliberation Summary:* Funding award of \$25,000 (\$20,000 for roof repair and kitchen upgrades; \$5,000 for ongoing recovery programs, hot meals, and peer support).
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:55:39 Storm Water On-Call Agreement Amendment:**
  - *Sponsor / Presenter:* Commissioners.
  - *Deliberation Summary:* Additional funding (not to exceed \$28,500) for BS Engineering to process and analyze storm water applications (such as Dollar General) while the county works to change the ordinance so developers bear these engineering costs.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:58:20 Humana Retiree Medical Renewal:**
  - *Sponsor / Presenter:* Commissioners / HR.
  - *Deliberation Summary:* Elective retiree group medical renewal with \$0 cost to the county; one premium adjustment from \$0 to \$5/month for a single retiree in northern Indiana.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **00:59:30 Mutual of Omaha Agreement (Replacing Aflac):**
  - *Sponsor / Presenter:* Commissioners / McGriff.
  - *Deliberation Summary:* Replaces Aflac for employee elective supplemental insurance, lowering costs and improving benefits and online portal access.

- *Action & Vote Disposition:* Approved by Voice Vote.
- **01:00:58 COBRA Administrative Service Agreement:**
  - *Sponsor / Presenter:* Commissioners / McGriff.
  - *Deliberation Summary:* Annual review and adoption of administrative agreement for COBRA via Solerix network.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **01:01:36 INDOT Right-of-Way Agreements (Federal Aid Bridges):**
  - *Sponsor / Presenter:* Commissioners.
  - *Deliberation Summary:* Right-of-way exploration and acquisition for two bridge replacement projects programmed in the TIP:
    1. County Road 600 South over Williams Creek (\$35,132).
    2. Eaton Albany Pike over Reese Ditch (\$13,484).
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **01:02:57 Indiana Pump Works Agreement Modification:**
  - *Sponsor / Presenter:* Don Chambers (Maintenance Superintendent).
  - *Deliberation Summary:* Modified the maintenance contract for new pump systems from a monthly fee (\$1,100/mo) to a quarterly health check (\$1,100/quarter) given that equipment is new and operating smoothly.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **01:05:36 Interlocal Agreement with City of Muncie & Resolution 2025-21 (McGalliard Road Paving):**
  - *Sponsor / Presenter:* Commissioners / Attorney John Brooke.
  - *Deliberation Summary:* Interlocal agreement and resolution to perform temporary reconstruction/paving on McGalliard Road between Broadway/MLK and the bypass before the end of the year. Total cost is \$77,523.12 (City: \$32,990 for half of materials; County: \$44,524.12 covering half of materials plus county labor and equipment). Justified under state workforce self-performance laws.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **01:10:53 Resolution: Transfer of Real Property to Central Indiana Regional Development District:**
  - *Sponsor / Presenter:* Attorney John Brooke.
  - *Deliberation Summary:* Transfer of a 29-acre county-owned strip/parcel in Albany (Bell Road/SR 67/28 area) to facilitate economic development and return it to the tax rolls.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **01:15:06 Resolution 2025-19: Elimination of Annual Department Head Appointments:**
  - *Sponsor / Presenter:* Commissioners.
  - *Deliberation Summary:* Removes the requirement for annual commissioner reappointment for key department heads (911 Director, Executive Administrator, EMA Director, EMS Director, Highway Superintendent, HR Leader, Veteran Services Officer, Weights & Measures Inspector, Building Maintenance Superintendent, IT

Officer, County Engineer, County Attorney). Department heads will now be governed by the employee handbook and performance standards.

- *Action & Vote Disposition:* Approved by Voice Vote.
- **01:17:16 Resolution 2025-20: Reduction in Force (RIF):**
  - *Sponsor / Presenter:* Commissioner Brand.
  - *Deliberation Summary:* Establishes organizational efficiencies and a reduction in force identifying eight opportunities within the county workforce.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **01:18:37 Purdue Extension 2026 Contractual Service Agreement:**
  - *Sponsor / Presenter:* Molly Hunt (Area Director) & Justin Curley.
  - *Deliberation Summary:* Contract presented for review. Due to a communication/routing mix-up with county legal counsel, the board opted to table the item.
  - *Action & Vote Disposition:* Tabled to next meeting by Voice Vote.
- **01:20:43 911 Radio System Redundant Connectivity:**
  - *Sponsor / Presenter:* Fred Cummings (911 Director).
  - *Deliberation Summary:* Request for funding for a standard Motorola contract to set up redundant connectivity for the county radio system. Director Cummings found half the funds in his budget, reducing the external request to \$15,000.
  - *Action & Vote Disposition:* Tabled to determine the proper EDIT fund source before year-end.
- **01:23:30 2026 Holiday Schedule:**
  - *Sponsor / Presenter:* Commissioners.
  - *Deliberation Summary:* Proposal to streamline county holidays from 15 (which included election days) down to align more closely with standard regional employers by removing Martin Luther King Jr. Day, Presidents' Day, and Juneteenth. After discussion, a motion was made to remove Presidents' Day and Juneteenth (retaining MLK Day).
  - *Action & Vote Disposition:* Approved by Voice Vote / Roll Call.
- **01:26:05 2026 Commissioner Meeting Schedule:**
  - *Sponsor / Presenter:* Commissioners.
  - *Deliberation Summary:* Schedule set for 2026, maintaining meetings primarily on the first and third Mondays at 9:00 a.m., with two adjustments to Tuesdays (January and September) due to holidays.
  - *Action & Vote Disposition:* Approved by Voice Vote.
- **01:28:09 Payment of Claims & Payroll:**
  - *Sponsor / Presenter:* Auditor's Office / Commissioner Brand.
  - *Deliberation Summary:*
    - General Claims reviewed (\$4,798,917.71 total, including riverboat revenue sharing, drainage maintenance, tax sale redemptions, LIT shares, EDIT funds, and wheel tax paving). Claims for Circuit Court 2 (Office Products Outlet /

OPO totaling \$449.36 and another for office furniture requiring 50% pre-payment) were held due to county policy against pre-payments.

- ARP Claims: \$9,12.51.
- Payrolls: Two pay periods approved (\$1,018,766.44 for the period ending October 8, plus prior pay).
- *Action & Vote Disposition*: Claims (except OPO), ARP claims, and payrolls Approved by Voice Vote.

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## 5. Open Public Comment / Citizen Forum

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*The following citizens spoke during the public comment period:*

- **01:49:18 Sue Arrington** (Muncie resident): Addressed the financial impacts of Senate Enrolled Act 1 (SEA 1) on property tax revenues (\$2.8M<U+2013>\$4.8M losses) and criticized the board's inaction on economic development agreements (EDAs) offered by solar developers (Geronimo/Royerton project) that could guarantee depreciation floors and supplement tax revenue.
  - **01:33:31 Linda Hansen** (League of Women Voters): Spoke regarding SEA 1 revenue shortfalls, urged reconsideration of solar ordinance setbacks (reducing to 250 ft), removing property value guarantees, and engaging with renewable energy developers to stabilize county budgets.
  - **01:57:44 Mike Johnson** (Muncie taxpayer): Supported maintaining property value guarantees and setbacks, citing quality of life concerns and warning against industrial solar blight.
  - **02:01:35 Cheryl Dawson** (State Road 28 resident): Discussed increasing personal property taxes, noted larger setbacks implemented in Allen and Whitley counties, and raised concerns regarding non-participating landowner protections and eminent domain.
  - **02:05:41 Dan Barry** (Local resident): Expressed concern that overly restrictive solar ordinances and rule changes drive business and tax revenue out of Delaware County to surrounding counties.
  - **02:09:49 Joe Russell** (Eaton resident): Highlighted the potential loss of millions in solar investments and tax revenues for local schools and government, criticizing restrictions on private property rights.
  - **02:20:50 Steve Hines** (Muncie resident): Thanked the commissioners for road repairs on East McGalliard, the mental health facility, and their diligent work on the solar ordinance, noting max levy constraints.
  - **02:14:15 Matt Hansen** (Local resident/Councilman context): Clarified details regarding the Royerton solar EDA proposal, noting timeline delays, legal questions regarding minimum assessment floors, and strings attached regarding setbacks and property value guarantees.
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## 6. Administrative Updates & Adjournment

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- **Staff / Board Announcements:**

- HR is out during fall break week; contact Jenna Kalin or Commissioner Brand. Jenna Kalin will be out October 12<U+2013>18.
- Health insurance open enrollment for 2026 will run early from November 18 through December 4 due to the transition from Apex to McGriff.
- Farmers are reminded that it is harvest season; motorists are urged to exercise caution around farm equipment.
- A county burn ban remains in effect (declared September 17).
- Purdue University is hosting a nuclear energy summit on November 5.
- IU Health virtual care hours have been reduced to 8:00 a.m. <U+2013> 8:00 p.m.
- A Stormwater Board meeting was announced to follow a short recess.

- **Adjournment:** 02:22:30 The regular meeting was recessed at 11:30 a.m. to transition into the Stormwater meeting.

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*Muncie Policy Memo Civic Monitoring Automated Pipeline. Report generated on 2026-09-25 02:03:23 using model gemini-3.5-flash-lite.*